

Determination that Only One Source is Reasonably Available (Including Brand Name) – FAR Part 13 Acquisitions under the SAT

MEMORANDUM TO THE FILE

Subj: DETERMINATION THAT ONLY ONE SOURCE IS REASONABLY AVAILABLE FOR A FAR PART 13 ACQUISITION UNDER THE SIMPLIFIED ACQUISITION THRESHOLD

I. BACKGROUND:

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).
2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement (or portion of the requirement to be sole-sourced) is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE:

Commercial description:

White Leather Gloves size LG, XL, XS, SM, M.
White Cotton Gloves Tips Size LG, XL, M, SM, XXS, XS.
White Cotton Gloves Size LG, SM, XS, M, XL, XX

1. Source or Brand Name: T & M Manufacturing

2. The total **estimated value** of this requirement is \$125,767.75
3. The requested **period of performance/license coverage period or delivery date** is 01 April 2026.

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING (*select all that apply*):

A. X ONLY ONE RESPONSIBLE SOURCE (*select all that apply*):

1. ☒ RESTRICTIVE RIGHTS.

This is a NOTICE OF INTENT TO AWARD A SOLE SOURCE DELIVERY ORDER using the simplified acquisition procedures of FAR Part 13 to procure white gloves for Marine Barracks Washington. The Government

Controlled by: DON, USMC, I&L HCA Controlled by: <i>Insert the name of the office creating the document (e.g., MCINCR RCO)</i> CUI Category(ies): PROCURE Limited Dissemination Control: DL ONLY POC: <i>Insert the name and phone number of the individual or office creating the document</i>

CUI//SP-PROCURE//DL ONLY

Determination that Only One Source is Reasonably Available (Including Brand Name) – FAR Part 13 Acquisitions under the SAT intends to award a sole source delivery order for the above products to the firm of T&M Manufacturing, Inc., 1110N 10000W, Tremonton, UT 84337. The Proposed contract action is for supplies for which the Government intends to solicit only one source. Under the authority of FAR6.302-1, only one responsible source and no other supplier will satisfy the agency's requirements. A determination by the Government not to compete with this proposed delivery order based upon responses to this notice is solely within the discretion of the Government

2 ☒ EXCLUSIVE LICENSING AGREEMENTS

This manufacturer is the only company that is in accordance with the Marine Barracks Washington Uniform Order. This company has also been used for previous contracts. During our market research report other companies were contacted but only T & M Manufacturing was able to meet and satisfy our requirements. Approval numbers 00150, 001502, 001503, 001504.

B. ____ BRAND NAME

C. ____ URGENT AND COMPELLING. The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

1. Date on which the requirement was first identified:
2. Required delivery date/period of performance:
3. Explanation of why delivery/commencement of services by the date mentioned above is required: *Explain the impact to the mission if the date above is not met, any special circumstances or conditions that exist which validate the requirement as "urgent," estimated production lead time for the item, etc.*
4. *If appropriate, include any additional pertinent information.*

V. CERTIFICATIONS:

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[REDACTED]

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